

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2026PRTR065197: IN RE THE MARK A BROWN LIVING TRUST DATED APRIL 2,
2019**

07/23/2026 in Department J6

**Hearing on Petition for Order Confirming Trust Assets, Confirming Trustee of the Trust,
Confirming Validity of the Trust**

Notice is required pursuant to Probate Code §851. Notice is insufficient. Mandatory Notice of Hearing on Petition to Determine Claim to Property (DE-115) served by mail on 05/27/26. Petitioner has not served TD Ameritrade in the manner required by Probate Code §851(a) – personal service.

Probate Code §851 (a) states:

At least 30 days prior to the day of the hearing, the petitioner shall cause notice of the hearing and a copy of the petition to be served in the manner provided in Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure on all of the following persons where applicable:

- (1) The personal representative, conservator, guardian, or trustee as appropriate.
- (2) Each person claiming an interest in, or having title to or possession of, the property.

Upon proof of statutorily sufficient service of the DE-115, confirm the trust is valid, that David H. Brown is the trustee of the trust and that The MARK A. BROWN LIVING TRUST DATED APRIL 2, 2019 is an amendment and restatement of THE MARK A. BROWN LIVING TRUST DATED NOVEMBER 20, 2013 in its entirety, and that the TD Ameritrade Account is an asset of the trust.

The court intends to continue to hearing to 09/17/26 at 9:00 a.m. in Department J6 for filing of statutorily sufficient service of the Notice of Hearing on Petition to Determine Claim to Property (DE-115).